LinkedIn acquisition service agreement

Provider

Ivan Manfredi trading as InboundOnSteroids
Via della taverna 10, Scauri, LT, Italy
im@ivanmanfredi.com

Client

I2W LTD. trading as SwishDM
Company number 13127819
16 Wakehurst Road, Eastbourne, England, BN22 7FL
john@swishdm.com

$1,000 USD every 30 days, paid upfront.

20% commission on eligible collected revenue from sourced clients' first three monthly service periods.

90-day minimum: $3,000, plus commission. Then rolling 30-day periods.

1. Agreement and start

This agreement takes effect when both parties sign. Each signer confirms authority to bind the named party. "Provider" and "Client" refer to the parties above. Days are calendar days unless stated otherwise; business days exclude weekends and public holidays in Italy.

The service starts on the date of the first successful subscription payment after both signatures. Client should pay when ready to provide access and begin onboarding. Each service period lasts 30 days from that date. No work or reserved start date is required before payment. If payment is taken before both signatures, Provider promptly refunds it and stops premature recurring billing. Client restarts checkout after both signatures; early payment does not start the service or minimum term. If payment has not been made within 30 days of the last signature, either party may end the unstarted agreement by email without a service fee.

2. Included service

Provider runs acquisition activity for Jonathan Kiekbusch's LinkedIn account: strategy and positioning; five posts per week, normally two reach, two mid-funnel and one buyer post; research, writing, design and publishing; relevant resources and X articles, with newsletters as the subscriber list develops.

Included outreach covers relevant contacts and engagers, connection invitations, DMs and available InMail credits, reply handling, qualification, booking, pre-call preparation and post-call follow-up for service-sourced prospects. A client panel, Slack feedback and a short monthly review are included.

The monthly plan sets resource priorities and publishing dates. One consolidated revision round per post or resource is included. Additional accounts, unrelated development, paid advertising, cold email, management of pre-existing pipeline, additional revision rounds and third-party costs require written scope and price agreement before work begins.

3. Base fee and payment

Client authorises a $1,000 recurring subscription every 30 days. The minimum service commitment is three periods. Commission is invoiced separately. Fees exclude taxes legally chargeable and separately shown on an invoice. Each party bears its own income taxes; withholding required by law must be documented.

Earned fees and started periods are non-refundable except for Provider's uncured material breach or another express right in this agreement. Cancelling the Stripe subscription does not itself terminate the agreement or remove fees properly due. Client pays undisputed amounts when due.

Which business earns commission

4. Attributed prospects

4.1 Source. An attributed prospect is a business whose first substantive sales inquiry or introduction to Client is generated by Provider's outreach or content/resources delivered under this agreement. Evidence may include dated messages, a resource request, tracked booking source, CRM history or the prospect's own source statement. Mere connection, follower status, profile growth or exposure to a post is insufficient on its own.

4.2 Existing business. Existing paying clients and active opportunities with substantive sales discussions in the 90 days before the service starts are excluded. Client supplies a dated baseline before outreach starts. An omission can be corrected with contemporaneous evidence; a prior connection alone is not an active opportunity. Work on excluded accounts earns commission only under a separate written agreement.

4.3 Shared record. Provider maintains a shared prospect log with source, evidence and first sourced date. Client supplies missing inbound, sales and payment information. Either party should raise a source dispute within ten business days of a monthly report, with evidence. Silence does not conclusively establish attribution; a missing log entry does not defeat other reliable evidence. Disputes follow section 13 and do not delay unrelated payments.

5. Rate and revenue base

5.1 Rate. Client pays 20% of revenue actually collected for each attributed client's first three consecutive monthly service-retainer periods, including retainer upgrades within those periods. The first period begins when that client's paid retainer service begins. A different billing frequency does not extend the three-month limit.

5.2 Calculation. Exclude VAT/sales tax, separately identified advertising spend, genuine third-party pass-through costs, refunds and chargebacks. Client's own labour, overhead and payment-processing charges are not deductions. Allocate advance, annual or bundled payments reasonably to the services and periods they cover using the customer contract; do not charge commission twice. Standalone one-off projects require a separate commission agreement. Relabelling a recurring retainer does not change its substance.

5.3 Collection. Commission becomes payable when eligible revenue is collected, even if collected after the service ends or a reporting window closes. Revenue in other currencies is converted to USD using the documented settlement rate or, if unavailable, the ECB reference cross-rate for the receipt date. Genuine refunds reduce commission through the next invoice or repayment within 30 days if no invoice remains.

6. Business closing after termination

6.1 Existing pipeline. Prospects attributed during the service remain eligible if they enter a binding customer contract or make their first payment within 180 days after the service ends.

6.2 Later inbound. A new inquiry first received within 90 days after the service ends also qualifies when documented evidence under 4.1 traces it to identifiable content, a resource or outreach produced during this engagement, and the prospect contracts or first pays within the same 180-day closing window. General brand awareness or unrelated future inbound is excluded.

6.3 Boundaries. The rate applicable to that prospect under section 9 and the first-three-month limit apply. There is no continuing base fee after termination and no perpetual commission on the audience. Within ten business days after termination, the parties exchange the pipeline snapshot and links to relevant delivered assets. The snapshot supports evidence and is not the sole condition of entitlement.

Payment and a clear exit

7. Reporting, visibility and verification

7.1 Monthly reports. Within ten business days after each calendar month, Client reports covered inquiries, source evidence, deal status, contract dates, eligible invoices, collections, refunds and unpaid balances, including nil reports. Reports continue through the section 6 windows and until eligible revenue is collected or otherwise evidenced as finally reconciled. Commission invoices supported by evidence are payable within seven days; a specific dispute does not delay the undisputed balance.

7.2 Limited access. Client maintains Provider's read-only CRM view of prospects covered by sections 4 and 6 throughout the 180-day closing window. Afterward, access narrows to eligible deals until their commission is finally reconciled. The view includes source, stage, contract date/value and collection status, with relevant contract, invoice and payment evidence supplied on request. It excludes unrelated customers and gives no editing, outreach or general account access.

If restricted CRM access is technically unavailable or creates a documented security or data-protection risk, Client provides equivalent verifiable exports or a secure shared report, updated monthly under 7.1, with underlying records available to the accountant under 7.3. Agree the replacement in writing before removing access; consent must not be unreasonably withheld. Urgent security suspension requires prompt notice and replacement within five business days. Withholding required access, reports or evidence is a material breach subject to section 8.2; these duties survive termination.

7.3 Record checks. Client retains relevant verification records throughout reporting/reconciliation and for 24 months after the later of termination or the last eligible collection, subject to lawful, proportionate retention. On ten business days' notice, a confidential independent accountant may inspect relevant source/CRM, contract, invoice and payment records, normally annually and additionally on reasonable evidence of a material discrepancy. Unrelated information may be redacted. Provider pays unless the shortfall exceeds 5% of commission due for the checked period; then Client pays reasonable documented audit costs and the shortfall.

7.4 No avoidance. Client must not intentionally defer deals/payments, omit records, misdescribe revenue or route attributed business through another entity to avoid commission. Equivalent commission remains due on eligible revenue collected that way. Genuine commercial delays and refunds are respected; deliberate evasion of section 6 does not defeat otherwise-earned entitlement. No double recovery or automatic penalty applies.

8. Duration, termination and suspension

8.1 Ordinary termination. The initial term is 90 days. It then renews in 30-day periods. Either party may give at least 30 days' written notice ending at a service-period boundary, no earlier than the end of the initial term. Notice can be given during the initial term. The agreed service and base fee continue through the notice period.

8.2 Breach. Either party may terminate for a material breach that remains uncured 15 days after written notice identifying it. For unpaid undisputed fees, Provider may suspend after seven days' written notice and terminate if unpaid at the end of the 15-day cure period. Provider may suspend immediately where reasonably necessary to prevent unlawful processing, a security incident or a serious platform violation, notifying Client promptly. Provider-caused failure does not extend Client's minimum commitment.

8.3 Settlement. Accrued fees and eligible commissions survive termination. If Client abandons the initial commitment or causes termination by an uncured material breach, the unpaid balance of the initial $3,000 base commitment remains payable, less any costs actually saved; mandatory legal rights remain unaffected. If Client terminates for Provider's uncured material breach, unused prepaid base fees are returned pro rata and future base fees stop. No new renewal-period fees are charged after the effective end date.

Responsibilities and safeguards

9. Future price or scope changes

Either party may propose revised pricing or scope from day 60, with at least 30 days' written notice and an effective date at a service-period boundary no earlier than day 90. Changes require express written acceptance by both parties; silence and continued payment at the old rate are not acceptance. Without agreement, existing terms continue unless either party gives valid termination notice under 8.1.

A new commission rate applies only to prospects first attributed on or after its effective date. Earlier attributed prospects, including their eligible later collections and section 6 claims, keep the original rate and revenue limits unless both parties expressly agree otherwise.

10. Delivery responsibilities and platform limits

Provider performs with reasonable care and skill. Client supplies lawful account access, accurate source material, substantiated claims, approvals and sales feedback. Client handles sales calls, quotations, closing and customer delivery; Provider has no authority to bind Client to a customer contract.

Client aims to supply requested feedback within two business days. The parties may approve an ongoing publishing brief; otherwise silence is not approval to publish a new factual claim. Client-caused delays move dependent deadlines and do not create an unlimited backlog or extra work. Base fees continue while Provider remains available and capacity is reserved; a prolonged interruption can be addressed by a written pause or termination under section 8.

Provider may refuse unlawful instructions or activity reasonably likely to compromise accounts. Platform availability, reach, restrictions and policy changes are outside either party's control. Provider promptly reports material issues and proposes adjustments. Platform issues do not excuse Provider's own breach. If the core service is prevented for more than 15 consecutive days by an external event neither party caused, either may terminate and unused prepaid base fees are returned pro rata.

11. Results and liability

No number of calls, clients, followers or amount of revenue is guaranteed. Client makes its own commercial decisions. Subject to mandatory law, Provider's total aggregate liability connected with this agreement is limited to fees actually paid to Provider under it, and Provider is not liable for indirect or consequential loss, lost profits, lost revenue or lost opportunity.

These exclusions and the cap do not apply to fraud, wilful misconduct, gross negligence, death or personal injury where liability cannot be excluded, or any other non-excludable liability. Nothing removes Client's obligation to pay fees and commissions properly due. Client is responsible for the legality and rights in materials and claims it supplies; Provider remains responsible for its own conduct.

12. Ownership and confidentiality

Client keeps its account, audience, contacts and lead list. Rights in bespoke final content and resources transfer to Client when the fees for those deliverables are paid, subject to third-party rights. Provider retains pre-existing and reusable templates, methods, software, workflows, prompts and know-how. Client receives a perpetual, non-exclusive right to use any Provider material embedded in paid final deliverables as needed to use those deliverables. Source code, internal tools, automation infrastructure and continuing hosting/support are not transferred unless expressly agreed.

Each party protects the other's confidential information, uses it only to fulfil this agreement, and restricts access to people bound to confidentiality who need it. Public, independently developed or lawfully obtained information is excluded. Legally required disclosure is permitted with prior notice where lawful. The obligation lasts three years after termination, and for trade secrets while protected by law.

Within ten business days after termination, Provider supplies a reasonable export of Client-owned work and records, ends operational account access (except the limited verification access under section 7) and cooperates with a basic handover. Additional migration or training requires a separate fee. Personal data is handled under section 14; access to Client's own data is not conditional on payment of a disputed fee.

Law and data handling

13. Law, notices and disputes

Italian law governs this agreement. The courts of Latina, Italy have exclusive jurisdiction, subject to mandatory law. Before proceedings, either party sends a concise written dispute notice and the parties try in good faith to resolve it for 15 days. Urgent protective relief and mandatory procedures remain available.

Notices go to the email addresses on page 1, or a replacement notified in writing. An email is received the next business day if no delivery failure is reported; a failed delivery must be resent by another effective written method. This agreement is the entire agreement for this service and prevails over proposal summaries. Changes require written agreement; electronic signatures and counterparts may be used. Invalid provisions are severed only to the necessary extent. Neither party may transfer its obligations without the other's written consent.

14. Personal data processing

For Client's prospect and contact data, Client is controller and Provider is processor under applicable EU/UK data protection law. Processing covers business contact details, public professional information, messages, lead-source records and booking/sales notes of prospects, customers and Client personnel, for research, outreach, content operations, qualification and reporting during the service and handover. Sensitive personal data is not intended. Client determines lawful purposes and instructions and supplies necessary notices and legal basis.

Provider processes only on documented lawful instructions, including transfers, and alerts Client to an instruction it believes unlawful. Provider ensures confidentiality, appropriate access controls, MFA where available, secure transmission/storage, proportionate testing, and prompt breach notification without undue delay. Provider reasonably assists with rights requests, security, impact assessments and regulator consultation, supplies compliance information and permits proportionate audits. Assistance caused by Provider's breach is at Provider's cost; other substantial assistance may be reasonably charged as agreed without preventing legally required cooperation.

Client gives general authorisation for subprocessors under equivalent written obligations. Before using them, Provider supplies their identity, purpose and processing locations; intended additions or replacements receive at least 14 days' notice for reasonable data-protection objections. Unresolved objections must be resolved before affected data is transferred. Provider remains responsible for subprocessor obligations and uses legally required safeguards for international transfers. No undisclosed processing vendor is authorised by this paragraph alone.

At Client's choice, Provider returns or deletes processed data within 30 days after termination and deletes remaining processor copies, except legally required retention; backups are isolated from use and removed on the ordinary deletion cycle within 90 days. Each party separately acts as controller for necessary contract, accounting and proportionate commission-evidence records it lawfully retains. Section 7 verification access and retained evidence are limited to what is necessary for commission accounting or legal claims, under each party's own applicable controller obligations and lawful basis. They do not authorise continued outreach or retention of unrelated CRM data. End access and delete evidence when no longer needed, subject to lawful retention duties. Section 14 prevails for processor duties.

Agreement and specific approval

15. Agreement signatures

Each signer has read this agreement and signs for the party identified below. The service starts under section 1 after both signatures and the first payment.

For the Provider

Ivan Manfredi
Trading as InboundOnSteroids

Provider signature

Date

For the Client

Jonathan Amar Kiekbusch, Director
For I2W LTD. trading as SwishDM

Client signature

Date

16. Client's specific approval

For the purposes of Articles 1341 and 1342 of the Italian Civil Code, Client separately and specifically approves: **8.1** (minimum term, automatic 30-day renewal and notice); **8.2** (Provider's suspension and termination rights); **8.3** (initial commitment balance on Client breach/abandonment); **10** (Client delays, continued reserved-capacity fees and external platform interruption); **11** (liability cap and excluded losses); and **13** (exclusive courts of Latina). Client also expressly acknowledges **5–7** (commission calculation, post-termination eligibility, reporting, limited verification access, audit and anti-avoidance) and **9** (future pricing and preservation of existing lead rates).

Client signature for specific approval

Date